Agenda Bill

AB# 23-38

Duvall City Council

Meeting Date: 6/20/2023

Subject Resolution Rescinding the COVID-19 Declaration of Emergency and Related Resolutions

Document Type Resolution

Department Administration

Contact Cynthia McNabb

Attorney Review Complete

Planning Commission Recommendation N/A

Handling Expedite **Deadline Date** 6/20/2023

Needed from Council Action

Recommendation

Approve Resolution rescinding COVID-19 State of Emergency Resolution Nos. 20-03 and 20-04 and Resolution requiring COVID-19 vaccination for City employees (Resolution No. 21-12).

Council Review History

- Introduced during 03/03/20 meeting
- Declaration of Emergency emailed to Council March 4, 2020 (Resolution No. 20-03.)
- Resolution No. 20-04 approved by City Council on March 17, 2020
- Resolution No. 21-12 approved by City Council on August 18, 2021

Attachments

- Resolution No. 20-03
- Resolution No. 20-04
- Resolution No. 21-12

Routing

Director: Director Name **Approved:** Initials Date

Administrator: Cynthia McNabb **Approved:** CJM 6/13/2023

Budget Impacts Unknown

Expenditure

Fund Name & #	Current Year	2nd Year	Future Impact
	$	$	$
	$	$	$
	$	$	$
	$	$	$

Revenue

Fund Name & #	Current Year	2nd Year	Future Impact
	$	$	$
	$	$	$
	$	$	$
	$	$	$

Notes

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Verified by Finance: Click here to enter text.

Key Facts and Information Summary

The State of Washington rescinded the State of Emergency related to the COVID-19 pandemic on October 31, 2022.

King County rescinded the State of Emergency related to the COVID-19 pandemic on February 6, 2023.

Both the State and King County have rescinded the requirement for employees to be fully vaccinated for the COVID-19 virus. Instead, both the State and the County, as well as numerous cities across Washington State, have adopted an approach of encouraging employees to remain vigilant and to continue to maintain vaccination for COVID-19 in the form of boosters and preventative measures.

The Centers for Disease Control have adopted a similar approach of encouragement of vaccination and no longer deem the COVID-19 virus to be an imminent threat to public health.

CITY OF DUVALL
WASHINGTON

RESOLUTION NO. 20-03

A RESOLUTION OF THE CITY COUNCIL OF THE CITY OF DUVALL, WASHINGTON, AFFIRMING THE DECLARATION OF AN EMERGENCY IN RESPONSE TO THE CORONAVIRUS (COVID-19), IN ORDER TO INSTITUTE EMERGENCY MEASURES TO PROTECT OUR EMPLOYEES AND THE COMMUNITY.

WHEREAS, the United States Secretary of Health and Human Services, Governor of the State of Washington and King County Executive have declared national and state emergencies as a result of transmission of COVID-19; and

WHEREAS, the Centers for Disease Control ("CDC") identifies the public health threat as "high", with the potential for a global pandemic; and

WHEREAS, the City is at high risk of being impacted by the novel coronavirus COVID-19, which upon diagnosis requires specific medical treatment and quarantine to reduce the virus' spread throughout the general population; and

WHEREAS, the risk to City employees is real and the infection of just one employee may cause the mandatory quarantine of essential employees; and

WHEREAS, in the event of community transition within the City of Duvall proactive measures are being taken to protect employees and the public, including the purchase of additional emergency supplies, potential sanitization of city facilities, support of impacted employees, and a potential reduction in service; and

WHEREAS, the Mayor of Duvall declared an emergency on March 4, 2020 pursuant to RCW 38.52.070, for the purpose of protecting public health and our employees as necessary and allow for the purchasing of supplies and contracting for services that may be needed urgently without opportunity for budget amendment to manage the novel coronavirus COVID-19; and

WHEREAS, in addition to the emergency powers granted in RCW 38.52.070, RCW 39.04.280 provides for emergency declarations and competitive bidding exemptions; and

WHEREAS, the City Council wishes to affirm the Mayor's declaration of an emergency and further support the City's efforts to respond to the emergency;

NOW, THEREFORE, THE CITY COUNCIL OF THE CITY OF DUVALL, WASHINGTON, HEREBY RESOLVES AS FOLLOWS:

The City Council affirms the Mayor's declaration of emergency and authorizes the execution of contracts or agreements or other actions necessary for the purpose of protecting public health and our employees as necessary. The City Council further hereby authorizes City forces to respond to the emergency in the most effective and expedient manner, without regard for the procedures and formalities that would otherwise govern the assignment of duties, procurement of materials, and contracting of services in accordance with RCW 38.52.070 and RCW 39.04.280.

PASSED BY THE CITY COUNCIL AT A REGULAR MEETING THEREOF ON THE 17th DAY OF March, 2020.

Approved as to form:

City Attorney

CITY OF DUVALL

Mayor Amy Ockerlander

ATTEST/AUTHENTICATED

Jodi Wycoff, City Clerk

CITY OF DUVALL
WASHINGTON

RESOLUTION NO. 20-04

A RESOLUTION OF THE CITY COUNCIL OF THE CITY OF DUVALL, WASHINGTON, ADOPTING A PUBLIC HEALTH EMERGENCY AND/OR PANDEMIC RESPONSE AND RECOVERY POLICY AND PROCEDURES.

WHEREAS, the Mayor of Duvall declared an emergency on March 4, 2020 pursuant to RCW 38.52.070, for the purpose of protecting public health and our employees as necessary in response to a public health emergency; and

WHEREAS, there is a need for a policy and related procedures to outline the response and recovery related to public health emergencies; and

NOW, THEREFORE, THE CITY COUNCIL OF THE CITY OF DUVALL, WASHINGTON, DO RESOLVE AS FOLLOWS:

Section 1. Adoption of a Public Health Emergency and/or Pandemic Response and Recovery Policy and Procedures: The Public Health Emergency and/or Pandemic Response and Recovery Policy and Procedures "Policy" is hereby approved as set forth on the attached Exhibit "A". The Policy is adopted as the rules the City will follow in public health emergencies as defined within the Policy.

PASSED BY THE CITY COUNCIL AT A REGULAR MEETING THEREOF ON THE 17th DAY OF March, 2020.

CITY OF DUVALL

Mayor Amy Ockerlander

Approved as to form:

City Attorney

ATTEST/AUTHENTICATED:

Jodi Wycoff, City Clerk

City of Duvall
Small Town. Real Life.

TITLE:	Public Health Emergency and/or Pandemic Response & Recovery Policy & Procedures
POLICY NUMBER:	**20-01**
EFFECTIVE DATE:	March 17, 2020
APPROVED BY:	Name: Amy Ockerlander Title: Mayor
ATTORNEY REVIEW:	Ann Marie Soto and Rachel Turpin (Madrona Law Group)

PURPOSE

The purpose of this policy is to provide guidance and establish procedures in the event a pandemic illness or public health emergency is expected to, or currently is taking place, which may affect the operations of the City of Duvall and/or pose a risk to the health or safety of staff and the community at large.

SCOPE

This policy applies to all City of Duvall departments and employees.

DEFINITIONS

A. Closure Pay: Payment of regular wages and benefits during closure of City Facilities in the event of a pandemic, outbreak, or proclamation of a public health emergency.

B. Outbreak: a widespread occurrence of an infectious disease in a community at a particular time with a hospitalization and/or mortality rate significantly higher than the common flu.

C. Extra Duty Pay: An increase in regular wages of 5% FLSA- exempt employees (as defined below) who are called into a City Facility to perform essential work during a closure of said facility.

D. Pandemic: a disease that is prevalent over a region, country, or the world.

E. Public Health Emergency: An occurrence or imminent threat of an illness or health condition, caused by bio terrorism, epidemic or pandemic disease, or (a) novel and highly fatal infectious agent or biological toxin, that poses a substantial risk of a significant number of human facilities or incidents or permanent or long-term disability.

REFERENCES

A. Chapter 70.05 RCW - Local Health Departments

B. Chapter 70.08 RCW - Combined City-County Health Departments

C. Chapter 70.26 RCW - Pandemic Influenza Preparedness

D. RCW 38.52.070 - Emergency Powers

E. City of Duvall Emergency Management Plan

F. Washington Department of Health: doh.wa.gov

G. Public Health - Seattle & King County: www.kingcounty.gov/depts/health.aspx

POLICY

It is the policy of the City of Duvall to take all appropriate measures needed to address a pandemic illness and to protect public health. Protecting the community and City staff is a top priority and this policy establishes some of the actions that may be taken, and the authority granted, to address a pandemic or other public health emergency.

PROCEDURES

The following procedures are established to minimize disease exposure and maintain continuity of City operations in the event that a pandemic or other public health emergency becomes a threat to the health or safety of City employees, their families, and the community at large.

Declaration of Pandemic and/or Public Health Emergency:

A. Public health professionals at organizations such as the Centers for Disease Control and Prevention (CDC), Washington State Public Health Department, Washington State Governor, and/or King County/Seattle Public Health Department may declare that a pandemic, outbreak, or public health emergency exists. Such declarations may contain instructions or recommendations to both private and public sector entities. The City will follow all mandatory instructions and will implement recommendations to the extent it determines these to be applicable and/or feasible or practicable under the particular circumstances.

B. Procedures to help minimize the spread of germs: Employees are urged to practice standard Non-Pharmaceutical Interventions ("NPI's"), including covering coughs by coughing into a tissue or, if a tissue is not available, into their elbows, regular hand washing, regular use of alcohol hand sanitizer, and avoiding touching eyes, nose, or mouth. Hands and work surfaces should be disinfected frequently. Employees are also urged to utilize social distancing such as maintaining a distance of six feet from others when practical to do so.

C. Proclamation of Emergency/Disaster Due to Pandemic and/or Public Health Emergency: Upon the City's proclamation of emergency/disaster due to pandemic and/or public health emergency, the following shall apply:

i. Employees who have a communicable illness or are experiencing symptoms of a communicable illness (as then-defined by the applicable health authorities), are prohibited from coming to work and are encouraged to consult their physician.

ii. Employees reporting to work who exhibit symptoms of a communicable illness, not seasonal allergies, will be sent home and encouraged to consult their physician. If a pandemic illness or outbreak becomes widespread in the community, as determined by state or local health authorities or the CDC, such that it rises to the level of a direct threat to other employees or the public, the City may require employees to have their temperature taken prior to reporting or returning to work. Unless otherwise prohibited by law, the employee shall be required to utilize accrued leave, if any, pursuant to the City's adopted personnel policies or the terms of any applicable collective bargaining agreement, if they are sent home due to symptoms of a communicable illness. In the event an employee is experiencing seasonal allergies, the symptoms of which closely resemble those of a pandemic illness, the City may recommend (or may require if authorized by law) that the employee obtain a doctor's note to confirm that the symptoms are caused by allergies and not a communicable illness, should the question arise.

iii. If the illness of an employee or member of an employee's household interferes with reporting to work in a timely manner, the employee is responsible for notifying their supervisor pursuant to the provisions of the personnel policies or the terms of any applicable collective bargaining agreement. Employees must not return to work until they have been free of illness symptoms (fever, chills, sore throat, etc.) for at least 24 hours (or any longer applicable period as determined by the appropriate health authority) or are deemed no longer infectious by a medical professional. The City may require employees who have been away from the workplace due to illness during a pandemic to provide a doctor's note certifying fitness to return to work.

iv. Except as otherwise prohibited by law, employees are required to first utilize their accrued sick leave and then any other accrued paid time off (vacation leave, compensatory time, or floating holidays) they so choose while recovering from, or caring for a spouse or dependent recovering from, illness covered by this Policy. Employees may elect to take unpaid time off, in lieu of using other accrued time.

v. If the school or place of care of an employee's child is closed due to pandemic, the employee may use accrued sick leave (or other accrued paid time off, to the extent the employee does not have sufficient sick leave), to care for the child.

vi. Employees may donate accrued sick leave to employees who do not have enough accrued leave balances to cover their absence, in accordance with the City's shared leave policy.

vii. Employees that do not have sufficient accrued leave may still take leave time creating a leave deficit, not to exceed twelve (12) days or ninety-six (96) hours, provided that additional leave will not be provided outside the scope of emergency. The leave deficit may not exceed a typical year's sick time accrual of 12 days (96 hours). Repayment of the deficit will be at a rate of 0.5 the number of sick time hours accrued in subsequent pay periods until no deficit remains. In addition, an employee that utilizes advanced leave and separates employment from the City of Duvall will need to compensate the City for the balance of monetary value of such employee's leave deficit. Employees also have the option of taking unpaid leave at the discretion of the Mayor or his/her designee.

Employees who accrue a deficit in leave time, shall re-pay this leave time at a rate of 50% of continued accrual per month, until the deficit has been satisfied. This method of repayment will allow the employee to continue to accrue time necessary for future sickness or medical needs.

D. When quarantine of an employee is ordered by State or County Health Officials due to an illness covered under this Policy, employees may use accrued sick leave (or other accrued paid time off, to the extent the employee does not have sufficient sick leave) for the period of quarantine. In the event an employee has no remaining paid time off, the employee may take leave without pay at the discretion of the Mayor or the Mayor's designee. If quarantine of an employee is necessary due to a verified work-related exposure to an outbreak or pandemic illness, the employee shall be placed on paid administrative leave for the duration of their quarantine.

F. At the discretion of the City Administrator or designee, City Facilities may alter their business practices, hours of business, and services provided. Examples of potential measures that could be taken include but are not limited to:

i. The City may implement temporary emergency procedures to minimize in-person contact between employees. Such measures may include greater use of e-mail, phone, and teleconferences as opposed to in-person meetings and contact.

ii. Reduced Reception and Front Counter Service: The City may alter how it conducts business with the public by limiting or halting services at counters/areas of City facilities where front-line services are typically provided.

iii. Partial Work from Home Schedules: Some staff may be permitted or assigned to work from home, in the City's sole discretion.

iv. Full or Partial City Facility Closure: City Facilities may be partially or fully closed. During closure, staff who are able to reasonably work from home, whether in full or partial shifts, will be allowed by the City to do so, and department directors and supervisors will coordinate this directly with the subject employees. To the extent they are not able to fully or partially work from home, staff will be provided Closure Pay in accordance with the provisions in this policy.

1. In the event City Facilities are closed, Fair Labor Standards Act (FLSA) Non-Exempt staff will receive Closure Pay for those hours in which they are unable to work from home (fully or partially). Closure Pay will only be made

available to staff who are scheduled to work on the day(s) on which City Facilities are closed. Those who are on a planned absence, such as vacation leave and were not recalled back to work will not receive Closure Pay. Any employee already on sick leave shall be eligible for Closure Pay in lieu of continued use of sick leave once Closure Pay is in effect.

2. FLSA Non-Exempt staff who are called into a City work site from home when City Facilities are closed or who, by the nature of their positions, cannot work from home during a closure, will receive pay at the rate of time and a half for all work carried out on site during said closure. Such premium pay shall be credited against any overtime pay the employee may earn during the applicable work week (i.e., the employee shall not receive "double overtime").

3. All FLSA Exempt employees who work during a closure shall receive Closure Pay for all hours actually worked. If such an employee is called into a City Facility to perform essential work during a closure of said facility, they shall receive Extra Duty Pay, provided they accurately track and report their hours worked onsite.

CITY OF DUVALL
WASHINGTON

RESOLUTION NO. 21-12

A RESOLUTION OF THE CITY COUNCIL OF THE CITY OF DUVALL, WASHINGTON, REQUIRING COVID-19 VACCINATIONS AS A CONDITION OF EMPLOYMENT.

WHEREAS, Public Health and Safety is a core responsibility of government; and

WHEREAS, The City of Duvall has been in a Declaration of Emergency in response to the Coronavirus (COVID-19) since March 2020; and

WHEREAS, The Food and Drug Administration has provided Emergency Use Authorization for multiple COVID-19 vaccinations; and

WHEREAS, all people ages 12 and older have been eligible to receive the COVID-19 vaccine since May 10, 2021 providing ample time for all eligible people to become fully vaccinated; and

WHEREAS, the COVID-19 Delta variant is significantly more transmissible than previous variants, leading to a significant rise in positive cases, hospitalization and deaths in recent weeks; and

WHEREAS, on July 27, 2021 the Centers for Disease Control release updated guidance on the need for urgently increasing COVID-19 vaccination rates amid high transmission rates; and

WHEREAS, in King County since June 30, 2021 the 7-day average of positive COVID-19 cases per 100,000 residents has jumped from 20 to 142.2 on August 12, 2021, putting the region well above the threshold for a high community transmission rate; and

WHEREAS, area hospitals and healthcare facilities are reaching or exceeding existing ICU capacity, directly related to hospitalized COVID-19 patients; and

WHEREAS, the Governor of the State of Washington has issued a vaccine mandate to all executive branch state employees due to "the emergence of highly contagious COVID-19 variants, including the "delta variant" that is at least twice as transmissible as the virus that emerged in late 2019, coupled with the continued significant numbers of unvaccinated people, have caused COVID-19 cases and hospitalizations to rise sharply among unvaccinated populations and have resulted in breakthrough infections in some fully vaccinated individuals"; and

WHEREAS, COVID-19 infection and exposure among the City of Duvall employees and the related isolation periods could put public health and safety at risk due to the potential unavailability of law enforcement, emergency management, certified water or sewer operators; and

WHEREAS, it is in the City and Public's best interest to make every reasonable and public health recommended steps to reduce the risk transmission among City employees and reduce the risk of mostly preventable serious illness or death among staff and the public we serve.

NOW, THEREFORE, THE CITY COUNCIL OF THE CITY OF DUVALL, WASHINGTON, DO RESOLVE AS FOLLOWS:

The City Council hereby supports the Mayor's recommendation to implement a mandatory COVID-19 vaccination policy for all current and future employees as a condition of employment, with the exception of approved religious or medical exemptions and directs the Mayor to implement the policy in Exhibit A and work with our employees' labor representatives regarding this decision and its impacts..

PASSED BY THE CITY COUNCIL AT A REGULAR MEETING THEREOF ON THE 17th DAY OF August, 2021.

CITY OF DUVALL

Amy Ockerlander

Mayor Amy Ockerlander

Approved as to form:

Daniel P. Kenny, City Attorney

ATTEST/AUTHENTICATED:

Jodi Wycoff, City Clerk

Exhibit A

City of Duvall
Small Town. Real Life.

TITLE:	**City of Duvall COVID-19 Vaccination Mandate**
POLICY NUMBER:	**21-XX**
EFFECTIVE DATE:	August ___, 2021
APPROVED BY:	Amy Ockerlander, Mayor
AMENDED:	
ATTORNEY REVIEW:	Dan Swedlow, Summit Law

PURPOSE

COVID-19 continues to persist in Washington State, including a recent increase in COVID-19 infections caused by variants that are more readily transmitted than prior forms of SARS-CoV-2, the novel coronavirus that causes COVID-19 infections. An increase in the number of COVID-19 cases will put more strain on healthcare resources, lead to more hospitalizations, and potentially more deaths. The U.S. Centers for Disease Control and Prevention ("CDC") and the Washington State Department of Health ("DOH") have determined that the COVID-19 vaccines that have received emergency use authorization ("EUA") by the U.S. Food & Drug Administration ("FDA") are safe and effective against infection with the coronavirus that causes COVID-19. Individuals have the choice to receive or not receive COVID-19 vaccines that are authorized under an EUA; however, the FDA only requires that this information be given to potential vaccine recipients by the vaccine provider and does not prohibit entities such as employers from imposing vaccination requirements.

The purpose of this COVID-19 vaccination mandate is to protect the health and safety of employees of the City of Duvall ("City") and the members of the public with whom they come into contact; to reduce the spread of variants of SARS-Cov-2, thereby reducing the incidents of sickness and death from COVID-19; and to reduce the amount of time employees are absent from work due to the need to isolate or quarantine as a result of exposure to SARS-CoV-2, the novel coronavirus that causes COVID-19 infections.

SCOPE

This mandate is a condition of employment applicable to all current and future City employees. All City department employees who refuse to be vaccinated will be subject to dismissal from employment for failing to meet legal job qualifications. The City will work with labor organizations on meeting collective bargaining obligations and adhering to civil service rules.

POLICY

This policy provides a phased in approach to vaccinations. As we work toward the vaccination mandate there will be a period of time where a testing program will need to be put in place.

City employees: Phase 1 B (full vaccination) with Phase 1 A (regular testing) included. Employees should be aware that, at the City's discretion, employees will be subject to Phase 1 A if they are not fully

vaccinated upon policy initiation based on health and safety concerns related to the ongoing presence of COVID-19 in the community.

This policy requires all applicants for positions at the City who are not current City employees to be fully vaccinated as set forth herein.

Phase 1 B: Full Vaccination

All employees are required to obtain their first COVID-19 vaccination injection within five (5) days of the effective date of this mandate and to be fully vaccinated against COVID-19 within seven (7) weeks of the effective date of this mandate (the "vaccination deadline") as a condition of their employment.

All applicants for employment with the City are also required to be fully vaccinated against COVID-19 prior to their employment. Applicants who are offered a position with the City who are not fully vaccinated may, at the discretion of the City Administrator, be given a grace period of no longer than six weeks from the date of their offer letter to become fully vaccinated.

In order to be considered fully vaccinated against COVID-19, employees and applicants must have been injected with either a two-dose mRNA vaccine that has received EUA or full approval from the FDA (such as the Moderna or Pfizer COVID-19 vaccines), or a single dose of any single-dose vaccine that has received EUA or full approval from the FDA (such as the Johnson & Johnson COVID-19 vaccine), and at least two weeks must have passed after the final dose of the vaccine. If an employee or applicant was vaccinated against COVID-19 outside of the United States, the employee or applicant is considered to be fully vaccinated if the employee or applicant was injected with a vaccine that has received World Health Organization ("WHO") Emergency Use Listing ("EUL") or full WHO approval, and the employee or applicant has completed the full vaccination series for the vaccine and the appropriate amount of time has passed according to the manufacturer's guidance. Employees and applicants are considered to be fully vaccinated for a period of twelve (12) months after they receive their final dose of their COVID-19 vaccine unless the CDC, DOH, or local health district recommends booster vaccinations, in which case employees and applicants will need to obtain the recommended booster vaccinations in order to maintain their status as fully vaccinated.

COVID-19 vaccinations that are available at no cost to employees and applicants can be located through the DOH Vaccine Locator or by contacting the Public Health – Seattle & King County. Employees will be permitted to take up to one (1) hour of paid time off per appointment for any COVID-19 vaccination appointments that occur during their scheduled work hours after the effective date of this mandate. Employees who need time off to be vaccinated shall coordinate their time off with their supervisors. When scheduling vaccination appointments, employees should keep in mind that they are not considered fully vaccinated until two (2) weeks after their final injection.

If the City is offering onsite COVID-19 testing to employees at the City's expense, such testing will also be available on a voluntary basis to asymptomatic, fully vaccinated employees who have been in close contact as defined by the CDC with someone who has tested positive for COVID-19. The timing of the testing must be consistent with CDC and/or DOH guidance, whichever is more protective of public health. Any fully vaccinated employee who has symptoms of COVID-19 must not be on City premises and must get tested elsewhere so as to avoid possibly infecting others on City premises.

Employees in need of an exemption from this policy due to a disability, or because of a sincerely held religious belief, must submit a completed Request for Accommodation form to the City Administrator to begin the interactive accommodation process within five (5) days of the effective date of this mandate.

Employees who are currently unvaccinated and who have previously tested positive for COVID-19 are currently required by the CDC to wait 90-days prior to receiving the vaccination. These employees will be required to submit of a positive test result and will have 90-days plus 7-weeks from the date of the positive COVID test to become fully vaccinated. Applicants in need of a reasonable accommodation must submit a completed Request for Accommodation form to the City Administrator to begin the interactive accommodation process within two (2) days after the date of the offer of employment. Accommodations will be granted where they do not cause the City undue hardship or pose a direct threat to the health and safety of others. Staff members receiving the exception status will be required to participate long term in the Phase 1 A regular testing program for a length of time determined by the City Administrator.

No later than ten (10) days before the vaccination deadline, employees will be required to provide either proof of vaccination as determined by the City Administrator or an approved reasonable accommodation as determined by the City Administrator exempting them from this mandate because of a disability or a sincerely-held religious belief.

This vaccination mandate is a condition of employment. Employees who have not provided proof that they have been fully vaccinated or who have not received a reasonable accommodation exempting them from this mandate on or before the vaccination deadline shall be separated from employment. Applicants who have not provided proof that they have been fully vaccinated or who have not received a reasonable accommodation exempting them from this vaccination mandate shall not be eligible for hire.

Phase 1 A: Regular Testing

Employees required (currently non-fully vaccinated staff) to participate in testing while awaiting full vaccination status, who have no symptoms of COVID-19 as defined by the CDC and no known close contact as defined by the CDC with someone who has tested positive for COVID-19 must provide proof of a negative viral antigen test or a negative nucleic acid amplification test ("NAAT") **test twice per week (spaced so that the tests are 3-4 days apart, typically Mondays and Thursdays)** and show proof of their test results twice per week to a designated City employee, who will keep a log of each employee's test results. The information on the log will be treated as confidential consistent with EEOC guidance to the extent permitted by applicable law. Based on current availability and cost, the City will provide test kits to employees requiring testing and testing will be performed by each employee onsite at City Hall, or an area designated by the City Administrator twice per week at the beginning of their shifts. However, if the cost or availability of testing increases, the City may require employees who are required to participate in this regular testing program (Accommodation exception as listed above) to obtain testing at the employees' expense.

Employees participating in the Phase 1 A (regular testing) program who have symptoms of COVID-19 as defined by the CDC and/or have been in close contact as defined by the CDC with someone who has tested positive for COVID-19 must not be on City premises and must get tested elsewhere so as to avoid possibly infecting others on City premises, and must follow the state DOH guidance and CDC guidance for quarantining (whichever is more protective of public health). The timing of the testing should be consistent with CDC and/or DOH guidance, whichever is more protective of public health.

Per current CDC guidance, employees participating in Phase 1 A (regular testing) who have tested positive for COVID-19 within the last three (3) months and have recovered do not need to be tested as long as they do not develop new symptoms of COVID-19. If CDC or DOH guidance changes, such employees will be required to be tested with the same frequency listed above.

Employees will not need to use leave for onsite COVID testing during Phase 1A. Employees may use leave in accordance with the City of Duvall American Rescue Plan Act of 2021 Emergency Leave Policy through September 30, 2021 or until which date the program is extended with council approval. Any leave necessary in excess may be utilized through the employees accrued paid time off for COVID-19 testing if they comply with the City's policies for requesting and using paid time off.

Request for Accommodation: Medical Exemption from Vaccination

To request an exemption from required vaccinations, please complete section 1 below and have your medical provider complete section 2 before returning this form to the human resources department.

Section 1

Name (print):	Date:
Dept.:	Position:
Manager:	Work/Cell Phone:

I am requesting a medical exemption from City of Duvall's mandatory vaccination policy for the following vaccination(s):

I verify that the information I am submitting to substantiate my request for exemption from [Company Name]'s vaccination policy is true and accurate to the best of my knowledge. I understand that any falsified information can lead to disciplinary action, up to and including termination.

I further understand that City of Duvall is not required to provide this exemption accommodation if doing so would pose a direct threat to myself or others in the workplace or would create an undue hardship for City of Duvall.

Employee Signature:	Date:

Section 2

Medical Certification for Vaccination Exemption

Employee Name: _____

Dear Medical Provider,

City of Duvall requires vaccination against COVID-19 as a condition of employment. The individual named above is seeking an exemption to this policy due to medical contraindications.

Please complete this form to assist City of Duvall in the reasonable accommodation process.

Religious Accommodation Request Form

Part 1: To be completed by employee

Name: _____ Department: _____

Date of request: _____

Immediate supervisor: _____

Requested accommodation (job change, schedule change, dress/appearance code exception, vaccination exemption, etc.):

_____

_____

Length of time the accommodation is needed: _____

Describe the religious belief or practice that necessitates this request for accommodation:

_____

_____

_____

Describe any alternate accommodations that might address your needs:

_____

_____

_____

I have read and understand City of Duvall's policy on religious accommodation. My religious beliefs and practices, which result in this request for a religious accommodation, are sincerely held. I understand that the accommodation requested above may not be granted but that the company will attempt to provide a reasonable accommodation that does not create an undue hardship on the company. I understand that City of Duvall may need to obtain supporting documentation regarding my religious practice and beliefs to further evaluate my request for a religious accommodation.

Employee signature: _____ Date: _____

CITY OF DUVALL
WASHINGTON

RESOLUTION NO. 23-07

A RESOLUTION OF THE CITY COUNCIL OF THE CITY OF DUVALL, WASHINGTON, RESCINDING RESOLUTION NOS. 20-03, 20-04, AND 21-12 RELATED TO THE COVID-19 DECLARATION OF EMERGENCY.

WHEREAS, according to RCW 38.52.070, the Mayor of Duvall declared an emergency on March 4, 2020, through Resolution No. 20-03, to protect public health and our employees as necessary and allow for the purchasing of supplies and contracting for services that may be needed urgently without opportunity for a budget amendment to manage the novel coronavirus COVID-19; and

WHEREAS, on March 17, 2020**,** the Duvall City Council affirmed the Mayor's Declaration of Emergency related to the novel coronavirus COVID-19 to address the significant health emergency presented by the COVID-19 virus in Resolution No. 20-04; and

WHEREAS, on August 18, 2021**,** the Duvall City Council passed Resolution 21-12 to require COVID vaccination as a condition of employment; and

WHEREAS the measures put in place by the City Council and the Mayor of Duvall, along with the vaccination requirements of the State of Washington, King County, and the City of Duvall, resulted in one of the highest vaccination rates in the State of Washington for City employees and protected the community from the adverse effects of the COVID-19 virus; and

WHEREAS the medical community, along with the Centers for Disease Control, has indicated that COVID-19 is likely to be endemic, meaning that COVID-19 will remain a permanent, yet manageable, part of daily life and because approximately 95% of people in the United States has some form of immunity, the public health emergency has dissipated; and

WHEREAS, on October 31, 2022, Governor Jay Inslee terminated the COVID-19 State of Emergency proclaimed in Proclamation 20-05 and rescinded all COVID-19 emergency proclamations issued under Proclamation 20-05; and

WHEREAS, on February 6, 2023, King County Executive Dow Constantine terminated the COVID-19 State of Emergency proclaimed in Executive Order ACO-8-27-EO and rescinded all COVID-19-related proclamations; and

WHEREAS, while the use of the Mayor's emergency powers is no longer needed to manage the risks of COVID-19, the City of Duvall recommends that all City employees and eligible residents remain up to date with boosters and to continue the use of treatments and preventative measures to lower the risk of severe illness, hospitalization or death from COVID-19; and

WHEREAS the City shall monitor future guidance and directives from Public Health – Seattle & King County, as well as County, State, and Federal government agencies to determine

if termination or supplementation of this Resolution, as well as the prior COVID-19, related Resolutions.

NOW, THEREFORE, THE CITY COUNCIL OF THE CITY OF DUVALL, WASHINGTON, HEREBY RESOLVES AS FOLLOWS:

The City Council declares that the use of emergency powers in accordance with RCW 38.52.070 and RCW 39.04.280 to manage the risk of COVID-19 no longer appears necessary; and because City residents and employees can elect to stay up to date with boosters to lower the risk of severe illness, hospitalization, or death from COVID-19, it is appropriate to terminate the requirements and conditions as set forth in Resolution Nos. 20-03, 20-04, and 21-12.

PASSED BY THE CITY COUNCIL AT A REGULAR MEETING THEREOF ON THE 20TH DAY OF JUNE 2023.

CITY OF DUVALL

Approved as to form:

_____
Mayor Amy Ockerlander

_____
City Attorney

ATTEST/AUTHENTICATED

_____
John Botero, City Clerk